

PLJ 2017 Lahore 296
[Multan Bench Multan]

Present: MASUD ABID NAQVI, J.

ASGHAR ALI BHATTI and others--Petitioners

versus

ELECTION TRIBUNAL, MULTAN and 6 others--Respondents

W.P. Nos. 8497 6933, 9485, 7662, 8717, 16045 and 10094 of 2016,
decided on 14.11.2016.

Punjab Local Government Act, 2013--

---S. 46--Constitution of Pakistan, 1973, Art. 199--Constitutional petition--
Interlocutory orders of election tribunals--Recounting of votes--Objection
of maintainability of petition--Petitions filed against interlocutory orders
of election tribunals constituted under Punjab Local Government Act,
2013 are not maintainable under Art. 199 of Constitution and uphold
impugned orders--Petitions were dismissed. [P. 299] A

*M/s. Muhammad Khalid Farooq, Rana Muhammad Asif Saeed,
Mian Ashfaq Ahmad Sial and Mughees Aslam Malik, Advocates for
Petitioners.*

*M/s. Ch. Muhammad Ashraf Sidhu, Malik Muhammad Latif
Khokhar, Rana Meraj Khalid, Ch. Muhammad Yasin, Rana Muhammad Asif
Saeed and Sardar Ashfaq Ahmad Baloch, Advocates for Respondents.*

*Mr. Naeem Khan, Advocate/Legal Advisor Election Commission of
Pakistan.*

Date of hearing: 14.11.2016.

ORDER

Through this single order, I propose to decide instant writ petition
alongwith connected Writ Petitions No. 6933, 9485, 7662, 8717, 16045 and
10094 of 2016 as common question of law is involved in all these writ
petitions.

2. Aggrieved from the orders of re-counting, passed by the Election
Tribunal in the above-mentioned writ petitions, the petitioners have filed the
writ petitions to challenge the validity and the legality of the impugned
orders.

3. Learned counsels for the petitioners submit that Election Tribunal
passed the impugned orders without any basis, without properly observing
the method & procedure as enunciated in Punjab Local Government Act,
2013 and on the vague allegations. To supplement his arguments, learned
counsel for the petitioners relies on the cases reported as *Zia-ur-Rehman v.*

Ahmed Hussain (2014 SCMR 1015), *Ghazanfar Abbas Shah v. Khalid Mehmood Sargana* (2015 SCMR 1535), *Muhammad Ashraf v. Tariq Javed* (2007 SCMR 34), *Bashir Ahmad v. Deputy District Education Officer* (2005 SCMR 1040), *Jam Madad Ali v. Asghar Ali Junejo* (2016 SCMR 251), *Moan Mohammad Farooq v. Election Tribunal* (1988 MLD 2949), *Zuifiqar Ali v. Election Tribunal* (2000 MLD 746). Conversely, the learned counsels for the private respondents state that the petitioner have a right of appeal under Section 46 of the Act and neither the said provision nor any other in the Act provides for the filing of an appeal or writ petition against an interlocutory order. Hence, the writ petitions are not maintainable. In support of their arguments, they have also drawn my attention to the dictum laid down by the Honourable Supreme Court of Pakistan in CPLA No. 1138/2016 & CPLA No. 1139/2016 as well as reported judgments i.e. *Mohammad Naeem Kasi and others v. Abdul Latif and 7 others* (2005 SCMR 1699), *Mohammad Asim Kurd alia Gailoo v. Nwabzada Mir Lashkari Khan Raisani and 11 other* (1998 SCMR 1597) and *Muhammad Raza Hayat Hiraj v. Election Commission of Pakistan* (2015 SCMR 233).

4. Objection with regard to non-maintainability of writ petitions against the interlocutory order of the Tribunal is correct as per scheme of the Act and legal position enunciated in the case-law on the subject matter while cases referred to by the learned counsels for the petitioners the same are distinguishable. Since they pertain to decisions after the election disputes had been finally decided. The Hon'ble Apex Court has educatively held in CPLA No. 1138/2016 & CPLA No. 1139/2016:

“.....The Act governs the subject and attends to the filing of election petitions (Section 38), constitution of election tribunals (Section 39), powers vesting in election tribunals (Section 40) and the decisions of election tribunal (Section 41). Section 46 of the Act, which provides for an appeal against final orders of an election tribunal, is reproduced hereunder:

46. Appeal against the orders of Election Tribunal.

“(1) Any person aggrieved by a final order of an Election Tribunal may, within thirty days of the communication of such order, prefer an appeal to the Lahore High Court.

(2) The Lahore High Court shall decide an appeal preferred under sub-section (1) within three months.”

Section 46 of the Act provides that against the “final order of an Election Tribunal” an appeal can be preferred to the High Court, significantly, it does not provide for an appeal against any order or interlocutory order. Mr. Babar Awan contends that since the status does not permit an appeal against an interlocutory order therefore the constitutional jurisdiction of the High Court under Article 199 of the Constitution can be invoked. We cannot bring ourselves to agree with the learned counsel because it will not only defeat the specific language of the Act but would also unnecessarily delay the disposal

of election petitions the early disposal of which the legislature has mandated by stipulating in sub-section (2) of Section 46 that appeals shall be decided within a period of three months. The tenure of elected persons is of a limited duration therefore the early decision of election disputes must not be thwarted, if challenges are permitted to be made to interlocutory orders, through petitions filed before the High Court which may eventually also come before this Court, then the remedy of an election petition and an appeal will be rendered illusory because in a probability the term of the person whose election has been challenged would have been completed or it would be close to completion. In any event a three member Bench of this Court in the case of Muhammad Raza Hayat Miraj (above) held (paragraph 36, page 253) that:

“It follows from the above discussion that the interlocutory orders passed by the Election Tribunal impugned before the High Court were not liable to be set aside in its constitutional jurisdiction as the petitioners before the Court, had a remedy available to them by way of appeal under section 67 of the Act after disposal of the election petitions. The impugned judgment of the Lahore High Court dated 28.2.2014, therefore, is maintained and similar opinion of the High Court of Sindh *Ali Gohar Khan Mahar's case (supra)* and of the High Court of Balochistan in *Dur Muhammad Khan Nasar's case (supra)*; is affirmed.

There is no reason for us to hold that the aforesaid principle is not applicable to local body elections.....”

5. By examining the record in the light of the provisions of the Act, I am therefore of the considered opinion that the writ petitions filed against the interlocutory orders of the Election Tribunals constituted under the Punjab Local Government Act, 2013 are not maintainable under Article 199 of the Constitution of the Islamic Republic of Pakistan and uphold the impugned orders. Consequently, these petitions are dismissed.

(R.A.) Petitions dismissed